RESOLUTION NO. 2026-58

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF LOS ALTOS SUBMITTING TO THE QUALIFIED ELECTORS OF THE CITY A CITIZEN-SPONSORED INITIATIVE MEASURE PROHIBITING THE CITY FROM SELLING, LEASING, CONVEYING, OR DECLARING AS SURPLUS LAND THE TEN CITY-OWNED DOWNTOWN PARKING PLAZAS WITHOUT VOTER APPROVAL; CALLING A SPECIAL ELECTION FOR THAT PURPOSE TO BE CONSOLIDATED WITH THE NOVEMBER 3, 2026 GENERAL ELECTION; SETTING THE RULES FOR BALLOT ARGUMENTS; AND AUTHORIZING AND REQUESTING THE SANTA CLARA COUNTY REGISTRAR OF VOTERS TO CONDUCT THE ELECTION

WHEREAS, on March 18, 2026, a Notice of Intent to Circulate a Petition was filed with the City Clerk with a request that a title and summary be prepared for the Los Altos Downtown Parking Plaza Ordinance ("Ordinance"); and

WHEREAS, on April 2, 2026, the City Attorney provided a title and summary for the proposed Ordinance to the proponents; and

WHEREAS, the Petition regarding the Ordinance was filed with the City Clerk on May 5, 2026, bearing 3,097 unverified signatures; and

WHEREAS, to qualify for the ballot, proponents were required to obtain 2,279 valid signatures on the Petition, which represents 10% of the registered voters in the City of Los Altos; and

WHEREAS, the Santa Clara County Registrar of Voters examined the records of voter registration and certified that the Petition contained more than the requisite number of valid signatures to qualify for election; and

WHEREAS, the City Clerk certified the sufficiency of the signatures on May 26, 2026; and

WHEREAS, pursuant to Elections Code Sections 9212 and 9215, the City Council requested a report on the proposed Ordinance to be submitted to Council at the June 23, 2026 meeting; and

WHEREAS, the City Council has received and considered the report, and having been presented with that analysis during the June 23, 2026 meeting, the City Council is proceeding in accordance with Elections Code Section 9215; and

WHEREAS, by adoption of Resolution No. 2026-36, on June 9, 2026, the City Council has called a General Municipal Election to elect two members to the City Council and requested that election be consolidated with the Statewide General Election to be held on Tuesday, November 3, 2026,

WHEREAS, pursuant to Elections Code Sections 9215, 1405 and 10403, the City Council desires to request that the election for this proposed Ordinance be consolidated with the November 3, 2026, Statewide General Election; and

NOW THEREFORE, THE CITY COUNCIL OF THE CITY OF LOS ALTOS DOES RESOLVE AS FOLLOWS:

1. Call for Election. Pursuant to California Elections Code Sections 306, 9215, 1405, 9222 and 10403, the City of Los Altos calls an election for the purpose of submitting to the voters of the City a citizen-sponsored initiative entitled "Los Altos Downtown Parking Plaza Ordinance." The City Council further requests that the election shall be consolidated with the Statewide General Election on November 3, 2026.

2. Ballot Language. The following question shall be submitted to the voters on the ballot:

Shall the Ordinance, which prohibits the City of Los Altos from selling, leasing, conveying, or declaring as surplus land the ten City-owned Downtown Parking Plazas for any reason, or from authorizing new uses or physical alterations that would diminish protected trees or parking availability, access, or convenience, unless separately approved by a majority of voters, except that two Parking Plazas may be developed for affordable housing without a vote, be adopted?	YES
	NO

This question requires the approval of a majority vote of the registered voters of the City of Los Altos voting on the measure at the election to become effective. If the Ordinance is so approved by the voters, then the Ordinance attached hereto as Exhibit A shall become effective ten (10) days following the date the vote is declared by the City Council in accordance with Elections Code Section 9217.

3. Text of Measure. The complete text of the Ordinance to be submitted to the voters for approval is attached to this Resolution as Exhibit A. The text of the measure shall be printed in the ballot materials and be available for public inspection in the City Clerk's Office and on the City of Los Altos website at www.losaltosca.gov.

4. Publication of Measure. The City Clerk is hereby directed to cause notice of the measure to be published once in a newspaper of general circulation in the City of Los Altos, in accordance with the California Elections Code Section 12111 and California Government Code Section 6061.

5. Request to Conduct Elections and Canvass Returns.

   (a) Pursuant to Elections Code commencing with Section 10400, the City Council hereby requests, consents, and agrees that the Santa Clara County Registrar of Voters shall take all actions which are necessary or appropriate in connection with the election,

including, but not limited to, printing and mailing sample ballots, arguments and applications for absentee ballots, canvassing election returns and certifying the results of the election to the City Council. Pursuant to Elections Code Section 10002, the Board of Supervisors of Santa Clara County is requested to permit the Registrar of Voters to render all services specified by Elections Code Section 10418 relating to the election. The City of Los Altos hereby agrees to reimburse the Santa Clara County Registrar of Voters in full for any services performed by each for the City upon presentation of an invoice to the City.

(b) The election on the Ordinance shall be held and conducted, the voters canvassed and the returns made, and the results ascertained and determined as provided herein.

(c) The election shall be held in accordance with the Elections Code of the State of California.

(d) At the next regular meeting of the City Council of the City of Los Altos occurring after the returns of the election for the Ordinance have been canvassed and the results have been certified to the City Council, or at a special meeting called for such purpose if required by law, the City Council shall cause to be entered in its minutes a statement of the results of the election.

6. Submission of Ballot Arguments. The City Council hereby adopts provisions governing the filing of ballot arguments and rebuttal arguments for the proposed Ordinance as set forth in California Elections Code commencing with Section 9282. All ballot arguments and rebuttal arguments for and against the measure shall be filed with the City Clerk pursuant to the timelines set forth in the Election Calendar of the Santa Clara County Registrar of Voters for the November 3, 2026 Statewide General Election. Pursuant to Elections Code Section 9282(a), the City Council authorizes the City Council to draft an argument against the Ordinance.

7. Submission of Supporters and Opponents. Pursuant to Elections Code Section 9170 and the timelines set forth in the Election Calendar of the Santa Clara County Registrar of Voters for the November 3, 2026 Statewide General Election, proponents and opponents of the Ordinance may submit, to the City Clerk, a list of supporters and opponents, with the necessary supporting documents, to be printed after the ballot label.

8. Impartial Analysis. In accordance with California Elections Code Section 9280, the City Council directs the City Clerk to transmit a copy of the Ordinance to the City Attorney, who shall prepare an Impartial Analysis showing the effect of the measure on the existing law and the operation of the measure, by August 18, 2026, at 5 p.m. The City Attorney's Impartial Analysis may not exceed 500 words.

9. Services of the City Clerk. The City Clerk is hereby authorized and directed to take all steps necessary to place the measure on the ballot, including giving further or additional notice of the election as required by law, and to cause the Ordinance to be printed. The City Clerk, after conferring with the City Attorney, is hereby authorized and directed to

make any minor changes to the ballot question or provisions of this Resolution, if such changes are required by law or necessary to ensure the election proceeds.

10. Canvass Returns of the Election. The Santa Clara County Registrar of Voters is hereby authorized to canvass the returns of the election, including this ballot measure.

11. Filing of Copy of Resolution. The City Clerk is hereby directed to file a certified copy of this Resolution with the Santa Clara County Registrar of Voters.

12. Election Held Pursuant to Law. In all particulars not recited in this Resolution, the election shall be held and conducted as provided by law for holding municipal elections.

13. Effective Date. This Resolution shall take effect upon its adoption.

I HEREBY CERTIFY that the foregoing is a true and correct copy of a resolution passed and adopted by the City Council of the City of Los Altos at a meeting thereof on the 23rd day of June 2026, by the following vote:

AYES: Dailey, Lang, Meadows, Weinberg

NOES:

ABSTAIN:

ABSENT:

Sally Meadows
Mayor

ATTEST:

Melissa Thurman (Jun 30, 2026 15:17:18 PDT)

Melissa Thurman, MMC
City Clerk

Exhibits:
A. Text of Measure

Los Altos Downtown Parking Plazas Ordinance

The people of the City of Los Altos do ordain as follows:

SECTION 1. Title.

This Ordinance may be cited as the "Los Altos Downtown Parking Plazas Ordinance."

SECTION 2. Los Altos Downtown Parking Plazas Ordinance.

The City of Los Altos Municipal Code is hereby amended by adding Chapter 14.92 to Title 14.

Chapter 14.92. Downtown Parking Plazas.

14.92.010 Findings and Purpose.

The people of the City of Los Altos find and declare that:

1. The City of Los Altos has a unique arrangement of land uses that require regulations and standards that are important to preserve the character of Los Altos and provide for compatibility of adjacent uses;

2. The General Plan Community Design and Historic Resources Element provides for a Downtown core with a village atmosphere reflective of traditional historic commercial development with parking plazas, and for the preservation of trees, especially heritage and protected trees;

3. The General Plan Land Use Element provides for downtown public parking in order to maintain vitality by ensuring adequate shared parking to serve businesses and visitors;

4. In 1957, the property commonly known as the Downtown Parking Plazas – designed as critical infrastructure to provide common use and distributed, accessible, open, surface public parking – was acquired and developed through assessment funding from Downtown property owners who continue to receive benefits from their investment;

5. The now City-owned Parking Plazas are central to how Downtown functions, and development decisions made by the City may affect the limited supply of public parking and the quality of environmental and scenic resources;

6. Any decision to sell, lease, convey, declare surplus, or re-purpose the Downtown Parking Plazas for any use other than for surface parking and vehicular access should first be approved by a majority vote to ensure that the proposed change is consistent

with the purpose of the Downtown core and does not negatively impact businesses or visitors;

7. At the same time, the City should have the flexibility to maintain and repair the Downtown Parking Plazas, and to use Parking Plazas for short-term special community events and farmers markets; and

8. This measure is intended to balance mandated statewide affordable housing goals with preserving the character of Downtown Los Altos and the availability, access, and convenience of public parking for Downtown workers, customers, and visitors.

14.92.020 Definitions.

"City" means the City of Los Altos, California, and shall collectively refer to the Mayor, City Council, all City departments, and all City employees.

"Downtown" shall refer in general terms to the area generally bound by Foothill Expressway, San Antonio Road, and Edith Avenue, and as also referred to on page 17 of the Land Use Element of the General Plan as "Downtown."

"Parking Plazas" shall refer to the following publicly-accessible, open and surface parking lots located in the Downtown area which are owned by the City:

Common Designation	APN Number
Plaza 1, South Plazas, First Street	16740039
Plaza 2, South Plazas, Second Street	16740072
Plaza 3, South Plazas, Third Street	16738002
Plaza 4, Central Plazas, First Street	16739057
Plaza 5, Central Plazas, Second Street	16739069
Plaza 6, Central Plazas, State Street	16738028
Plaza 7, North Plazas, First Street	16739032
Plaza 8, North Plazas, Second Street	16739007
Plaza 9, North Plazas, Fourth Street	16738049
Plaza 10, North Plazas, Fourth Street	16738029

14.92.030 Preservation of Parking Plazas.

Notwithstanding any other provision in the City's Municipal Code, General Plan, or other City statutes or policies, the City may not take any of the following actions with respect to a Parking Plaza unless and until the action is approved by a majority vote of the City's voters:

1. Sell, trade, lease, donate, dispose or otherwise convey any Parking Plaza, or any portion thereof, for any reason.

2. Designate or change the use of any Parking Plaza in any way which would affect the use of the Parking Plazas for parking or which would diminish the availability, access or convenience of public parking.

3. Declare any Parking Plaza "surplus land" or "exempt surplus land" under the California Surplus Land Act (Government Code sections 54220 et seq.).

4. Modify, alter or construct any capital project or other physical alteration on any of the Parking Plazas which permanently diminishes the availability, access or convenience of public parking.

5. Modify or physically alter any Parking Plaza by adding additional levels or floors.

6. Modify or physically alter any Parking Plaza in a way which would negatively affect protected trees or the tree canopy.

14.92.040 Third Party Agreements.

The City shall not enter into any development agreement, public-private partnership, ground lease, joint powers agreement, or similar arrangement that would enable a third party to undertake actions prohibited by this measure without voter approval.

14.92.050 Exceptions.

Notwithstanding section 14.92.030, the City may take the following actions with respect to the Parking Plazas without a vote of the People:

1. Maintain and repair the Parking Plazas, even if these activities temporarily affect parking availability, access, or convenience, if they are intended to preserve or improve the access or convenience of public parking.

2. Host community activities, such as the farmers market or similar events, which use the Parking Plazas on a short-term and temporary basis.

3. Develop Parking Plaza 7 (APN: 16739032) and Parking Plaza 8 (APN:16739007) for affordable housing.

14.92.060 Reenactment Required for City Actions Prior to Effective Date.

If the City takes any action listed in section 14.92.030 on or after the date of publication of the notice of intention to circulate the initiative petition adding this Chapter to the Municipal Code, as required by the Elections Code, but prior to the effective date of this Chapter, which was not adopted in compliance with the requirements of this Chapter, that action shall be deemed null, void and of no further force or effect unless and until the action is reenacted in compliance with the requirements of this Chapter.

Any action listed in section 14.92.030 taken by the City on or after the date of publication of the notice of intention to circulate the initiative petition adding this Chapter to the Municipal Code, as required by the Elections Code, shall be subject to the requirements of this Chapter.

14.92.070 Required Election.

1. If the City wishes to take any action listed in section 14.92.030, the City Council must place such action on the next regularly-scheduled election ballot following the final City approval of the action.

2. The City Council shall not place such action on the ballot unless and until the City has taken all steps necessary under the law to approve the action.

3. Such action shall not become effective unless and until it is first approved by the City pursuant to all legal requirements and thereafter approved by the voters pursuant to this Chapter.

4. Placing an action listed in sections 14.92.030 on the ballot shall not affect other legal requirements for such action, including environmental review under the California Environmental Quality Act and consistency with the General Plan.

5. All materials which the City prepares for distribution to voters in connection with the election referenced herein, including the voter information pamphlet, shall describe with particularity the proposed action, the impact of the proposed action on the Parking Plazas, the change, if any, in the number or location of parking spaces, and the cost to the City.

14.92.080 Citizen Initiative.

An action listed in section 14.92.030 may be placed on the ballot via citizens' initiative and will take effect based on approval by a majority of the City's voters.

SECTION 3. Earliest Possible Election.

The people of Los Altos hereby expressly request that this measure be submitted to the voters of Los Altos at the earliest time allowable by law.

SECTION 4. Effective Date.

This measure shall become effective upon its approval by a simple majority of electors voting on the measure, but shall become operative as of the date of publication of the notice of intention to circulate the initiative petition adding this Chapter to the Municipal Code, as required by the Elections Code.

SECTION 5. Conflicting Measures.

A. Any other measure concerning or affecting the availability, access, or convenience of public parking for Downtown customers, workers and visitors which appears on the same ballot shall be deemed to conflict with this measure.

B. In the event that this measure and one or more conflicting measures appear on the same ballot, the provisions of the measure which receives the greater number of affirmative votes shall prevail in their entirety, and the other measure or measures shall be null and void.

C. If this measure is approved by the voters but superseded by any other conflicting measure approved by voters at the same election, and the conflicting ballot measure is later held invalid, this measure shall be self-executing and given full force and effect.

SECTION 6. Severability.

Should any provision of this measure, or its application to any person or circumstance, be determined by a court of competent jurisdiction to be unlawful, unenforceable or otherwise void, voidable, or invalid, that determination shall have no effect on any other provision, or the application of this measure to any other person or circumstance and, to that end, the provisions hereof are severable. By approving this measure, the voters express their intent that each section and subsection would have been adopted irrespective of whether any one or more sections or subsections are found to be invalid or unconstitutional, and that each section and subsection is therefore explicitly severable, part-by-part, phrase-by-phrase, and word-by-word, and that if any portion is determined by a court of competent jurisdiction to be unlawful, unenforceable or otherwise void, voidable or invalid, that the least amount of language be severed from the measure.

SECTION 7. Amendments.

No provision of this measure shall be amended or repealed except by a vote of the people.

SECTION 8. Liberal Construction.

This measure shall be liberally construed to effectuate its purposes.

SECTION 9. Municipal Affairs.

A. The people of the City of Los Altos declare that preserving the availability, access and convenience of public parking for Downtown customers, workers and visitors by requiring voter approval of any change in use of the Parking Plazas constitutes a municipal affair.

B. The people of the City of Los Altos declare their intent that this citizen initiative be enacted, and voter approval be required for changes to the Parking Plazas, if this measure is approved by a simple majority of voters.

SECTION 10. Legal Defense.

The people of the City of Los Altos desire that this measure, if approved by the voters and thereafter challenged in court, be defended by the City. The people, by approving this measure, hereby declare that the proponents of this measure have a direct and personal stake in defending this measure from constitutional or statutory challenges to the measure's validity or implementation. In the event the City fails to defend this measure, or the City fails to appeal an adverse judgment against the constitutionality, statutory permissibility, or implementation of this measure, in whole or in part, in any court of law, the measure's proponents shall be entitled to assert their direct personal stake by defending the measure's validity and implementation in any court of law and shall be empowered by the people through this measure to act as agents of the people. The City shall indemnify the proponents for reasonable expenses and any losses incurred by the proponents, as agents, in defending the validity and/or implementation of the challenged measure. The rate of indemnification shall be no more than the amount it would cost the City to perform the defense itself.